

108	Gorris vs. Extra Space Management, Inc. 25-01496221	1. Motion for Change of Venue (Transfer) Defendant Extra Space Management, Inc. (“Defendant”) moves to transfer this action to Alameda County Superior Court pursuant to Code of Civil Procedure sections 397(c) and 395.5. Defendant argues that it has complied with the requirements of Corporations Code section 2105 and is entitled to invoke the venue provisions under Code of Civil Procedure section 395.5. However, Defendant provides no evidence in support of this argument. It is Defendant’s burden to overcome the presumption that Plaintiff has selected the proper venue. (Mitchell v. Superior Court (1986) 186 Cal.App.3d 1040, 1046.) Defendant has not met that burden. Alternatively, Defendant argues that the Court should exercise its discretion to transfer this action to promote the convenience of witnesses and the ends of justice under section 397(c). Defendant contends that the events giving rise to Plaintiff’s claims all arise out of the Oakland facility and material witnesses such as the facility manager, those who communicated with Plaintiff and her family regarding the account and post-auction issues, and the third-party service that conducted the auction of Plaintiff’s unit are all located in or near Alameda County. “A moving party under section 397, subdivision (c) must demonstrate the transfer will promote both the convenience of witnesses and the ends of justice.” (Rycz v. Superior Court of San Francisco County (2022) 81 Cal.App.5th 824, 836.) “The declaration or declarations supporting [a motion to transfer for convenience of witnesses] should ‘set forth the names of the witnesses, the nature of the testimony expected
-------------------	---	--

		from each, and the reasons why the attendance of each would be inconvenient.’ ” (Ibid.) Here, as with Defendant’s prior Motion, which was denied on February 17, 2026, Defendant has not presented the names of any witnesses or the nature of expected testimony from any witnesses in the supporting declaration. Further, the declaration fails to set forth any reasons why the attendance of any witnesses in Orange County would be inconvenient. Thus, Defendant has failed to carry its burden to show transfer would promote the convenience of witnesses and the ends of justice. Moreover, Defendant already moved for the exact same relief and that prior Motion was denied. Code of Civil Procedure section 1008(b) provides in relevant part: “A party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” Defendant’s instant Motion does not comply with this section. Based on all of the above, the Motion is DENIED. Moving party to give notice. 2. Case Management Conference
--	--	--